Powergrid Corporation Of India Ltd vs Central Electricity Regulatory ... on 4 November, 2008

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 74 of 2008

Dated: November 4, 2008

Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member
Hon'ble Mr. H.L. Bajaj, Technical Member

Powergrid Corporation of India Ltd. -Appellant(s)
Versus
Central Electricity Regulatory Commission & Ors. -Respondent(s)

Counsel for the Appellant(s) : Mr. M.G. Ramachandran and
Mr. Ramnesh Jerath

Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL

ORDER

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its ATS of Doyang HEP in North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period. The impugned order has been challenged on various other grounds. However, if the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

Deepak/Veena

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

(H.L. Bajaj) (Manju Goel)
Technical Member Judicial Member

Deepak/Veena

Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Appeal No. 75 of 2008 & I.A. No. 105 of 2008 Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. The delay in filing the appeal is only of 3 days. The application for condonation of delay is not opposed by the respondents. The delay is condoned.

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its ATS of Loktak HEP in North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period. The impugned order has been challenged on various other grounds. However, if Deepak/Veena the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

(H.L. Bajaj) (Manju Goel)
Technical Member Judicial Member

Deepak/Veena

Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Appeal No. 76 of 2008 & I.A. No. 106 of 2008 Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. The delay in filing the appeal is only of 6 days. The application for condonation of delay is not opposed by the respondents. The delay is condoned.

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its ATS of Kopili-Khandong in North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period.

Deepak/Veena The impugned order has been challenged on various other grounds. However, if the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

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(H.L. Bajaj )                                          (Manju Goel)
Technical Member                                     Judicial Member



Deepak/Veena
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Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Appeal No. 77 of 2008 & I.A. No. 107 of 2008 Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. The delay in filing the appeal is only of 24 days. The application for condonation of delay is not opposed by the respondents. The delay is condoned.

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its transmission system associated with Kopili Hydroelectric Stage-I Extension Project in the North Eastern Region.

Deepak/Veena

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period. The impugned order has been challenged on various other grounds. However, if the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the regulations.

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(H.L. Bajaj )                                                    (Manju Goel)
Technical Member                                               Judicial Member
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Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its ATS of Agartala GBPP in the North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period. The impugned order has been challenged on various other grounds. However, if the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

Deepak/Veena

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

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(H.L. Bajaj )                                                    (Manju Goel)
Technical Member                                               Judicial Member
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Deepak/Veena

Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Appeal No. 79 of 2008 & I.A. No. 108 of 2008 Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. The delay in filing the appeal is only of 16 days. The application for condonation of delay is not opposed by the respondents. The delay is condoned.

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its Ranganadi-Ziro transmission system in North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period.

Deepak/Veena The impugned order has been challenged on various other grounds. However, if the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

(H.L. Bajaj) (Manju Goel)
Technical Member Judicial Member

Deepak/Veena

Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Appeal No. 80 of 2008 & I.A. No. 109 of 2008 Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. The delay in filing the appeal is only of 10 days. The application for condonation of delay is not opposed by the respondents. The delay is condoned.

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its Augmentation Scheme in North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period. The impugned order has been challenged on various other grounds. However, if Deepak/Veena the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

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(H.L. Bajaj )                                                    (Manju Goel)
Technical Member                                               Judicial Member



Deepak/Veena
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Before the Appellate Tribunal for Electricity (Appellate Jurisdiction) Dated: November 4, 2008 Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member Hon'ble Mr. H.L. Bajaj, Technical Member Powergrid Corporation of India Ltd. -Appellant(s) Versus Central Electricity Regulatory Commission & Ors. -Respondent(s) Counsel for the Appellant(s) : Mr. M.G. Ramachandran and Mr. Ramnesh Jerath Counsel for the Respondent(s) : Mr. M. Debbarma, AGM, TSECL ORDER

1. Heard.

2. The only point in issue in this appeal is whether the Central Electricity Regulatory Commission ('Commission' for short) was right in not applying the Central Electricity Regulatory Commission (Terms & Conditions of Tariff) Regulations, 2004 ('Regulations' for short) for determining transmission tariff for the appellant, Powergrid Corporation of India Ltd. for the period of 1/4/2004 to 31/3/2007 in respect of its ATS of Kathalguri GBPP in North Eastern Region.

3. We have already said in our judgment passed today in appeal no. 73 of 2008 that the Commission should have applied the Regulations for this period. The impugned order has been challenged on various other grounds. However, if the transmission tariff is determined on the basis of Regulations, all the other grounds of challenge will also be taken care of.

Deepak/Veena

4. Accordingly, this appeal is also allowed and the impugned order is set aside and the Commission is directed to re-determine the transmission tariff for the aforesaid period as per the Regulations.

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(H.L. Bajaj )                                                    (Manju Goel)
Technical Member                                               Judicial Member



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